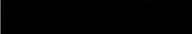




Research Collaboration Agreement

Between  and
University of Auckland

San Francisco, Aug 29, 2024

ON ONE SIDE  HEREAFTER REFERRED TO AS "
REPRESENTED BY,  ACTING ON BEHALF 
REGISTERED IN 


OTHER SIDE, THE RESEARCHER University of Auckland
a university constituted under the University of Auckland Act 1961
University of Auckland
AT
;

IN LINE WITH THE FOLLOWING CLAUSES AND STATEMENTS.

STATEMENTS:

- I. The parties are institutions with full capacity to engage, and whose essential purposes are research and development.
- II. The parties coincide in the interest of promoting teaching, research, and development, the reason for which it is their will to endorse the present agreement in the clauses and conditions established below:

CLAUSES:

FIRST. The present agreement seeks to establish the bases and criteria upon which University of Auckland and [REDACTED] will establish a collaboration.

SECOND. The parties declare their interest in collaboration in relation to the provision of Assessment Licenses by [REDACTED] to the University of Auckland.

THIRD. The parties agree that the specific development, activities, responsibilities of each party, and the budget for the activity programs resulting from this agreement will be detailed and added as annexes to this agreement.

FOURTH. The parties will designate members of their personnel to be responsible for monitoring this agreement and all the specific ones that are signed.

FIFTH. A party must not use the names, logos or trade marks of the other party or its personnel in any publicity or marketing without the other party's prior written consent.

SIXTH. The personnel designated in each party for the implementation of any joint action will depend exclusively on the institution with which they have established their labor relationship.

SEVENTH. The present agreement will be effective for three years from the date of signing.

EIGHTH. Both parties agree to treat any scientific and technical information received from the other party during the collaboration as confidential, ensuring limited circulation of said information and assuming responsibility for this obligation being fulfilled by all personnel who require access under this agreement. Additionally, co-investigators from partner universities will be allowed to access data produced by [REDACTED] and utilize the [REDACTED] researcher portal to manage their participants at each site and data collection. This duty of confidentiality will persist indefinitely following the termination of this contract.

NINTH. The parties undertake to fully comply with the data protection obligations contained in the REGULATION OF THE EUROPEAN PARLIAMENT AND OF THE COUNCIL on the protection of natural persons about the processing of personal data and the free movement of such data and repealing Directive 95/46 / EC (GDPR). The parties are informed that their data will be processed by each other for the management of the planned collaboration and the payment of the economic conditions, if applicable. The basis of this treatment is the execution of the agreement, so the provision of data for this purpose is mandatory and would prevent compliance otherwise.

The data will be kept for that purpose during the entire time the agreement is in force and, even afterward, for the entire time required by the applicable legislation and until the possible responsibilities derived from it expire.


The parties have the right to request access to their personal data, rectification or deletion, as well as the limitation of its treatment, to oppose it and the portability of their data.

TENTH. The parties expressly accept the content and ethical values established in the Code of Conduct and Anticorruption Policy of the other party, whose content they know, formally committing to putting it into practice in each one of the decisions, processes, and activities developed in collaboration with the party, as well as not carrying out any practice that in any way may lead to a violation of applicable laws or regulations related to corruption.

Likewise, the enforcement of this Code and Policy is mandatory for all third parties involved on their own in all activities developed jointly.

Failure to comply with the provisions of this clause, as well as any unethical behavior that may arise during the relationship of the parties must be reported immediately, will be cause for resolution, and, where appropriate, will result in demanding lawful compensation for damages that may arise.

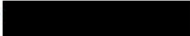
ELEVENTH. The collaboration relationship provided for in this agreement excludes any employment relationship between the parties.

The parties undertake to resolve amicably any disagreement that may arise in the development of this Collaboration Agreement. In case of divergences in the interpretation and execution of the same or the specific agreements or contracts that result, the Courts and Tribunals of the parties' headquarters will be the only ones with competency, the parties expressly waiving to any other jurisdiction that may correspond.

The maximum aggregate liability of one party to the other under or in connection with this Agreement shall be limited to an amount equal to  Neither party shall be liable to the other for any loss of profits, revenue, savings, business, goodwill, or for any consequential, indirect, incidental, or special damages of any kind under or in connection with this Agreement.

Read and understood by the parties, it is signed in two copies.

The parties hereto have caused this agreement to be executed by their respective authorized representatives as of the day, month and year entered above.

For 

For University of Auckland

Signed by: 

Signed by: University of Auckland





Title: 

Title: a university constituted under the University of Auckland Act 1961